



## **Order under Section 21.2 of the Statutory Powers Procedure Act and the Residential Tenancies Act, 2006**

**Citation:** Axes Investments Inc. v Asquith, 2025 ONLTB 98300

**Date:** 2025-12-30

**File Number:** LTB-L-089100-25-SA-RV

**In the matter of:** 506, 4 FOREST LANEWAY  
Toronto ON M2N5X8

**Between:** Axes Investments Inc. Landlord

**And**

Michael Asquith Tenants  
Delroy Devon Davidson

### **Review Order**

Axes Investments Inc. (the 'Landlord') applied for an order to terminate the tenancy and evict Michael Asquith and Delroy Devon Davidson (the 'Tenants') because the Tenants failed to meet a condition specified in the order issued by the Board on September 26, 2025 with respect to application LTB-L-020729-25.

This application was resolved by order LTB-L-089100-25 issued on October 31, 2025. The Tenants filed a motion to set the order aside. The Tenants' motion was resolved by order LTBL-089100-25-SA issued on December 12, 2025.

On December 30, 2025, the Tenants requested a review of order LTB-L-089100-25-SA.

A preliminary review of the review request was completed without a hearing.

### **Determinations:**

1. This review request is made on the ground of being not reasonably able to participate in the proceedings.
2. The hearing that gave rise to the order under review took place on December 4, 2025. The Tenants attended the hearing.
3. The review request complains that the Tenants were not given a sufficient opportunity to give evidence and submissions at the review hearing for matter LTB-L-020729-25. The

review under consideration is a review of order LTB-L-089100-25-SA, which resulted from a different hearing. I am therefore not going to consider any issues that the Tenants have with the review hearing for matter LTB-L-020729-25.

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4. The review request submits that the Tenants were not offered the services of Tenant Duty Counsel ('TDC') and were told that these services were not available on the date of the hearing. If this is the case it was not an error of the LTB. The LTB facilitates the provision of services by TDC by giving TDC log in information for LTB hearings. The LTB is not responsible for TDC operations and makes no guarantees on behalf of TDC. Further, any Tenant who receives a notice of hearing is given sufficient information to obtain legal advice and representation (if they are eligible) through a legal clinic. If these Tenants did not do so prior to the hearing this is not an error of the LTB.
5. The remainder of the review request provides information, some of which would have been relevant in the hearing of the review for matter LTB-L-020729-25 or in the hearing of matter LTB-L-089100-25-SA. However, none of this remaining information provides a basis for a preliminary finding that the Tenants were not reasonably able to participate in the proceedings for matter LTB-L-089100-25-SA or that any serious error was made in the proceedings or the order.
6. On the basis of the submissions made in the request, I am not satisfied that there is a serious error in the order or that a serious error occurred in the proceedings or that the Tenants were not reasonably able to participate in the proceeding.

**It is ordered that:**

1. The request to review order LTB-L-089100-25-SA issued on December 12, 2025 is denied. The order is confirmed and remains unchanged.

**December 30, 2025**

**Date Issued**

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Renée Lang

Vice Chair, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor  
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

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